



File No.: EXP202213647

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 23, 2022, a complaint was filed with entry registration number REGAGE22e00059247723 before the Spanish Agency for Data Protection against A.A.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant reports the creation of a fake profile on Facebook, using her name, which contains intimate photos of her with her hair uncovered and without a melfa. She expresses her suspicions that the creator of the profile is her ex-spouse, reported for abuse on August 15, 2022.

There is a police request to Meta Platforms Ireland regarding the author of the profile, dated November 28, 2022. Along with the complaint, she provides a copy of the report, dated November 24, 2022, which is currently being processed in the Violence Court (...) (Preliminary Proceedings Proc. Abbreviated XXX/2022).

SECOND: On December 27, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD states the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing if there is one, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Proceedings

In relation to the preliminary actions, the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that "The expiration of the term without an agreement to initiate sanctioning proceedings being issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have passed from the date of admission for processing of the complaint, and no agreement to initiate sanctioning proceedings has been issued and notified.

In this case, the computation of the maximum duration of the preliminary actions of twelve months began on December 27, 2022, and they are currently still pending completion, so they must be declared expired.

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IV

Initiation of New Investigative Actions

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

"The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and proceedings whose content would have remained the same had the expiration not occurred may be incorporated into this. In any case, the new procedure must complete the procedures for allegations, proposal of evidence, and hearing of the interested party."

In this regard, the Audiencia Nacional, in its ruling of July 10, 2013 (JUR 2013\259250), considers that "the declaration of the expiration of the prior investigative actions initiated by the Spanish Agency for Data Protection does not constitute any obstacle for said entity to initiate or restart other prior investigative actions regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed."

In the present actions, the investigation has not yet been concluded as there is essential information pending receipt; therefore, despite the time elapsed, the initiated investigation must continue until its complete conclusion.

It should be noted that the Court of Violence against Women (...) is conducting Preliminary Proceedings ***NUMBER.1 for these same facts, and this Agency, in order to determine possible responsibilities within its competences, requested from said Court on 29/06/2023, reiterated on 11/09/2023, to provide information on several aspects that may be necessary to establish the authorship of the facts.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative actions.

Therefore, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

SECOND: TO OPEN new investigative actions and incorporate into these new actions the documentation that integrates the preliminary actions declared expired by this act.

THIRD: TO NOTIFY this Resolution to A.A.A. and to the complainant.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-091222

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